

House File 973

H-1339

1 Amend House File 973 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 562A.6, subsection 10, Code 2025, is
5 amended to read as follows:

6 10. "*Rent*" means a payment to be made to the landlord under
7 the rental agreement, including base rent, utilities, late
8 fees, and other payments made by the tenant to the landlord
9 under the rental agreement.

10 Sec. 2. Section 562A.8, subsection 1, paragraph a, Code
11 2025, is amended by adding the following new subparagraph:

12 NEW SUBPARAGRAPH. (7) Posting on the primary entrance
13 door of the dwelling unit, with the date the notice was posted
14 included on the notice, and service by electronic mail provided
15 that all of the following are true:

16 (a) In a separate addendum to the rental agreement executed
17 by the tenant, the tenant has expressly consented to service of
18 notice using electronic mail for purposes of this chapter.

19 (b) The landlord has delivered the notice to the tenant
20 at the electronic mail address provided by the tenant in the
21 separate addendum described in subparagraph division (a).

22 (c) The tenant has not revoked, in writing, the consent for
23 service by electronic mail, with the burden of proving such
24 revocation being on the tenant.

25 Sec. 3. Section 562A.8, subsection 1, paragraph b, Code
26 2025, is amended by adding the following new subparagraph:

27 NEW SUBPARAGRAPH. (7) Service by electronic mail provided
28 that all of the following are true:

29 (a) In a separate addendum to the rental agreement executed
30 by the landlord, the landlord has expressly consented to
31 service of notice using electronic mail for purposes of this
32 chapter.

33 (b) The tenant has delivered the notice to the landlord at
34 the electronic mail address provided by the landlord in the
35 separate addendum described in subparagraph division (a).

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(amending this HF 973 to CONFORM to SF 412)

1 (c) The landlord has not revoked, in writing, the consent
2 for service by electronic mail, with the burden of proving such
3 revocation being on the landlord.

4 Sec. 4. Section 562A.11, subsection 3, Code 2025, is amended
5 to read as follows:

6 3. A provision in a rental agreement that is prohibited by
7 this section ~~included in a rental agreement~~ is unenforceable.
8 If a landlord willfully ~~uses a rental agreement containing~~
9 ~~provisions known by the landlord to be prohibited~~ enforces
10 a known prohibited provision, a tenant may recover actual
11 damages sustained by the tenant and not more than three months'
12 periodic rent and reasonable attorney fees.

13 Sec. 5. Section 562A.29A, subsection 1, paragraph c, Code
14 2025, is amended to read as follows:

15 c. Posting on the primary entrance door of the dwelling
16 unit and mailing by both regular mail and certified mail, as
17 defined in [section 618.15](#), to the address of the dwelling
18 unit or to the tenant's last known address, if different from
19 the address of the dwelling unit. A notice posted according
20 to this paragraph shall be posted within the applicable time
21 period for serving notice and shall include the date the notice
22 was posted. A notice delivered under this paragraph that is
23 addressed to all tenants and unknown parties in possession
24 shall be deemed to provide notice to all tenants, occupants,
25 and parties in possession of the premises.

26 Sec. 6. Section 562A.29A, subsection 1, Code 2025, is
27 amended by adding the following new paragraph:

28 NEW PARAGRAPH. d. Posting on the primary entrance door of
29 the dwelling unit with the date the notice was posted included
30 on the notice, and service by electronic mail provided that all
31 of the following are true:

32 (1) In a separate addendum to the rental agreement executed
33 by the tenant, the tenant has expressly consented to service of
34 notice using electronic mail for purposes of this section.

35 (2) The landlord has delivered the notice to the tenant

1 at the electronic mail address provided by the tenant in the
2 separate addendum described in subparagraph (1).

3 (3) The tenant has not revoked, in writing, the consent for
4 service by electronic mail, with the burden of proving such
5 revocation being on the tenant.

6 Sec. 7. Section 562B.9, subsection 1, paragraph a, Code
7 2025, is amended by adding the following new subparagraph:

8 NEW SUBPARAGRAPH. (7) Posting on the primary entrance
9 door of the dwelling unit, with the date the notice was posted
10 included on the notice, and service by electronic mail provided
11 that all of the following are true:

12 (a) In a separate addendum to the rental agreement executed
13 by the tenant, the tenant has expressly consented to service of
14 notice using electronic mail for purposes of this chapter.

15 (b) The landlord has delivered the notice to the tenant
16 at the electronic mail address provided by the tenant in the
17 separate addendum described in subparagraph division (a).

18 (c) The tenant has not revoked, in writing, the consent for
19 service by electronic mail, with the burden of proving such
20 revocation being on the tenant.

21 Sec. 8. Section 562B.9, subsection 1, paragraph b, Code
22 2025, is amended by adding the following new subparagraph:

23 NEW SUBPARAGRAPH. (7) Service by electronic mail provided
24 that all of the following are true:

25 (a) In a separate addendum to the rental agreement executed
26 by the landlord, the landlord has expressly consented to
27 service of notice using electronic mail for purposes of this
28 chapter.

29 (b) The tenant has delivered the notice to the landlord at
30 the electronic mail address provided by the landlord in the
31 separate addendum described in subparagraph division (a).

32 (c) The landlord has not revoked, in writing, the consent
33 for service by electronic mail, with the burden of proving such
34 revocation being on the landlord.

35 Sec. 9. Section 562B.11, subsection 3, Code 2025, is amended

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(amending this HF 973 to CONFORM to SF 412)

1 to read as follows:

2 3. A provision in a rental agreement that is prohibited by
3 ~~this section included in a rental agreement~~ is unenforceable.
4 If a landlord or tenant ~~knowingly uses a rental agreement~~
5 ~~containing provisions known to be prohibited by this chapter~~
6 willfully enforces a known prohibited provision, the other
7 party may recover actual damages sustained.

8 Sec. 10. Section 562B.20, subsection 1, Code 2025, is
9 amended to read as follows:

10 1. A landlord shall not have the right of access to a mobile
11 home owned by a tenant unless such access is necessary to
12 prevent damage to the mobile home space, ~~or~~ is in response to
13 an emergency situation, or after entry of an order of removal
14 of the tenant, is for the purpose of making safe the mobile
15 home or mobile home space, including securing or winterizing
16 the mobile home or mobile home space.

17 Sec. 11. Section 562B.27A, subsection 1, paragraph c, Code
18 2025, is amended to read as follows:

19 c. Posting on the primary entrance door of the dwelling
20 unit and mailing by both regular mail and certified mail, as
21 defined in [section 618.15](#), to the address of the dwelling
22 unit or to the tenant's last known address, if different from
23 the address of the dwelling unit. A notice posted according
24 to this paragraph shall be posted within the applicable time
25 period for serving notice and shall include the date the notice
26 was posted. A notice delivered under this paragraph that is
27 addressed to all tenants and unknown parties in possession
28 shall be deemed to provide notice to all tenants, occupants,
29 and parties in possession of the premises.

30 Sec. 12. Section 562B.27A, subsection 1, Code 2025, is
31 amended by adding the following new paragraph:

32 NEW PARAGRAPH. d. Posting on the primary entrance door of
33 the dwelling unit, with the date the notice was posted included
34 on the notice, and service by electronic mail provided that all
35 of the following are true:

1 (1) In a separate addendum to the rental agreement executed
2 by the tenant, the tenant has expressly consented to service of
3 notice using electronic mail for purposes of this section.

4 (2) The landlord has delivered the notice to the tenant
5 at the electronic mail address provided by the tenant in the
6 separate addendum described in subparagraph (1).

7 (3) The tenant has not revoked, in writing, the consent for
8 service by electronic mail, with the burden of proving such
9 revocation being on the tenant.

10 Sec. 13. Section 648.3, subsection 2, paragraphs a and c,
11 Code 2025, are amended to read as follows:

12 a. Delivery evidenced by an acknowledgment of delivery that
13 is signed and dated by a resident of the premises who is at
14 least eighteen years of age. Delivery A notice delivered under
15 this paragraph that is addressed to all tenants and unknown
16 parties in possession shall be deemed to provide notice to the
17 defendant all tenants, occupants, and parties in possession of
18 the premises.

19 c. Posting on the primary entrance door of the premises and
20 mailing by both regular mail and certified mail, as defined
21 in [section 618.15](#), to the address of the premises or to the
22 defendant's last known address, if different from the address
23 of the premises. A notice posted according to this paragraph
24 shall be posted within the applicable time period for serving
25 notice and shall include the date the notice was posted. A
26 notice delivered under this paragraph that is addressed to
27 all tenants and unknown parties in possession shall be deemed
28 to provide notice to all tenants, occupants, and parties in
29 possession of the premises.

30 Sec. 14. Section 648.3, subsection 2, Code 2025, is amended
31 by adding the following new paragraph:

32 NEW PARAGRAPH. d. Posting on the primary entrance door of
33 the premises, with the date the notice was posted included on
34 the notice, and service by electronic mail provided that all of
35 the following are true:

1 (1) In a separate addendum to the rental agreement executed
2 by the tenant, the tenant has expressly consented to service
3 of notice using electronic mail for purposes of this section
4 and sections 648.4 and 648.5.

5 (2) The landlord has delivered the notice to the tenant
6 at the electronic mail address provided by the tenant in the
7 separate addendum identified in subparagraph (1).

8 (3) The tenant has not revoked, in writing, the consent for
9 service by electronic mail, with the burden of proving such
10 revocation being on the tenant.

11 Sec. 15. Section 648.5, subsection 1, paragraph a, Code
12 2025, is amended to read as follows:

13 a. An action for forcible entry and detainer shall be
14 brought in a county where all or part of the premises is
15 located. Such an action shall be tried as an equitable action.
16 Upon receipt of the petition, the court shall set a date, time,
17 and place for hearing. The court shall set the date of hearing
18 no later than eight days from the filing date, except that the
19 court shall set a later hearing date no later than fifteen days
20 from the date of filing if the plaintiff requests or consents
21 to the later date of hearing. Upon motion by any party,
22 proceedings, including any court-ordered pretrial mediation,
23 may be conducted by video conference with the parties and other
24 participants if the hearing is able to be conducted in an
25 efficient manner, does not prejudice a substantial right of any
26 party, and appropriate technology is available. A nonmoving
27 party may attend any such hearing in person without further
28 notice, motion, or leave of court.

29 Sec. 16. Section 648.5, subsection 2, paragraph c, Code
30 2025, is amended to read as follows:

31 c. If service cannot be made following two attempts using
32 a method specified under paragraph "a" or "b", by posting on
33 the primary entrance door of the premises and mailing by both
34 regular mail and certified mail, as defined in [section 618.15](#),
35 to the address of the premises or to the defendant's last known

1 address, if different from the address of the premises. An
2 original notice posted according to this paragraph shall be
3 posted not less than three days prior to the hearing and shall
4 include the date the original notice was posted. Service of
5 original notice by mailing shall occur not less than three days
6 prior to the hearing, but may otherwise occur prior to the two
7 attempts using a method specified under paragraph "a" or "b".

8 Sec. 17. Section 648.18, Code 2025, is amended to read as
9 follows:

10 **648.18 Possession — bar.**

11 ~~Thirty~~ Sixty days' peaceable possession with the knowledge
12 of the plaintiff after the cause of action accrues is a bar to
13 this proceeding.

14 Sec. 18. Section 648.22, Code 2025, is amended to read as
15 follows:

16 **648.22 Judgment — execution — costs.**

17 1. If the defendant is found guilty, judgment shall be
18 entered that the defendant be removed from the premises, and
19 that the plaintiff be put in possession of the premises, and
20 an execution for the defendant's removal within three days
21 from the judgment shall issue accordingly, to which shall be
22 added a clause commanding the officer to collect the costs as
23 in ordinary cases.

24 2. Any personal property of the defendant remaining on the
25 premises after the defendant's removal under this section may
26 be immediately disposed of by the plaintiff. Personal property
27 under this subsection does not include a mobile home as defined
28 in section 562B.7, or the contents therein, unless the mobile
29 home is the premises.

30 Sec. 19. NEW SECTION. **648.24 Expungement — sealing of**
31 **court records.**

32 Upon application of a defendant in an action for forcible
33 entry and detainer, the court shall enter an order sealing
34 the court records of the action under any of the following
35 circumstances:

1 1. *a.* The action was filed against the defendant for
2 nonpayment of rent and the defendant prevailed on the merits
3 of the case or the case was dismissed because the plaintiff
4 failed to appear. A defendant is deemed to have prevailed
5 on the merits of the case including but not limited to when
6 a court determines that the action for forcible entry and
7 detainer was filed by a plaintiff against a defendant who was
8 not in violation of the lease due to clerical error, mistaken
9 identity, or other demonstrable error of the plaintiff, or
10 was filed by the plaintiff in violation of section 562A.36 or
11 562B.32.

12 *b.* Expungement of all records by order of the court pursuant
13 to this subsection shall occur within three days of a properly
14 filed application by the defendant requesting expungement of
15 records of an action for nonpayment of rent where the defendant
16 had prevailed on the merits of the case or the case had been
17 dismissed because the plaintiff failed to appear.

18 *c.* This subsection does not apply if the action was
19 dismissed by the plaintiff for reasons other than a failure to
20 appear on the part of the plaintiff.

21 2. *a.* The defendant was found guilty in the action for
22 nonpayment of rent and less than seven years has passed,
23 and the defendant's application requesting expungement is
24 accompanied by the plaintiff's notarized written consent for
25 expungement of all records on the action and, in such consent,
26 the plaintiff attests that the defendant has made satisfactory
27 payment of unpaid rent and fees owed to the plaintiff under the
28 lease agreement and the defendant has made satisfactory payment
29 of all money judgments associated with the action.

30 *b.* A landlord shall not be obligated to consent to the
31 request of a tenant to expunge all records on the action under
32 this subsection.

33 *c.* A tenant may only request expungement of all records
34 on an action for forcible entry and detainer pursuant to this
35 subsection once in a seven-year period.

1 *d.* The supreme court shall prescribe a plaintiff consent
2 form that may be used for purposes of this subsection and
3 shall provide the form to the public on the judicial branch's
4 internet site.

5 3. Seven or more years have passed since the defendant was
6 found guilty in an action for forcible entry and detainer based
7 on the grounds of nonpayment of rent when due.>

8 2. Title page, by striking lines 1 through 3 and inserting
9 <An Act relating to property law, including rent, rental
10 agreements, notice requirements, and possession of property.>

WULF of Black Hawk